

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
KISHIA SMITH,

Plaintiff,

-against-

SUMMONS

Index #:

Date Purchased:

The basis of venue
designated is: The
County where the
Plaintiff resides is
Richmond County

THE CITY OF NEW YORK, DETECTIVE
FRANK J. RECCA and JOHN DOES NO.
1-10,

Defendants.
-----X

TO THE ABOVE NAMED DEFENDANT(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to service a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Staten Island, NY
May 21, 2020



LAW OFFICES OF ROBERT E. BROWN,
PC
Attorneys for Plaintiff
KISHIA SMITH
260 Christopher Lane, Suite 201
Staten Island, New York 10314
(718) 979-9779

TO: THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
Division of Law – Rm 1225 South
1 Centre Street
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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KISHIA SMITH,

INDEX No.

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, DETECTIVE
FRANK J. RECCA and JOHN DOES NO.
1-10,

Defendants.

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NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of Plaintiff's rights under the Constitution of the United States, the Constitution of the State of New York as well as the common law of the State of New York.

JURISDICTION AND VENUE

2. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§§ 1981, 1983, and 1988, the Fourth, Eighth and Fourteenth Amendments of the United States Constitution, against CITY OF NEW YORK and DETECTIVE FRANK J. RECCA, "JOHN DOE No. 1-10"(collectively, "Defendants").

3. Notice of the Plaintiff's claim and her intention to sue thereon, and of the time when and the place where her injuries were sustained, was duly served and filed with the Defendant CITY, and acknowledged by Defendant CITY on or about the 9th day of April 2019. More than thirty (30) days have elapsed since the service of such notice of claim, and Defendant

CITY, has failed and refused to adjust such claim.

4. A General Municipal Law Section 50-h Hearing was conducted by Defendant CITY on Plaintiff before the commencement of this action.

5. This action is started within one year and 90 days from the date of occurrence.

JURY DEMAND

6. Plaintiff demands a trial by jury in this action.

PARTIES

Plaintiff

7. Plaintiff KISHIA SMITH is a resident of Richmond County.

Defendants

8. At all times herein stated, Defendant CITY was, and continues still to be, a public corporation within the State of New York, and duly created, organized and existing under and by virtue of the laws of the State of New York.

9. At all times herein stated, the CITY was, and continues still to be, a municipal corporation within the State of New York, which was duly created, organized and existing under, by virtue of the laws of the State of New York.

10. At all times herein stated, the CITY did maintain a police department pursuant to law.

11. Defendant CITY operates the New York City Police Department ("NYPD"), a department or agency of Defendant CITY responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers.

12. Upon information and belief, Defendant RECCIA is a resident of the State of New York and is employed by Defendant CITY.

13. Upon information and belief, JOHN DOE No. 1-10 at all relevant times were employed by NYPD.

14. Plaintiff does not know the real names and shield numbers, if any, of Defendants JOHN DOE No. 1-10.

15. At all times herein stated, the CITY did employ police officers pursuant to law.

16. At all times herein stated, Defendants Frank J. Recca and JOHN DOE No. 1-10 represented to the Plaintiff that they were employed by the CITY and worked at the NYPD (hereinafter collectively "NYPD Officers"), all of whom were in the employ of Defendant CITY and assigned to the NYPD.

17. At all times herein stated, Defendant CITY, its agents, servants and employees, were acting under color of state law and pursuant to municipal policy and custom.

RELEVANT FACTS

18. Plaintiff was wrongfully arrested and incarcerated on or about August 22, 2018 at approximately 6:00a.m. at her home.

19. On or about August 22, 2018, Plaintiff was in her home when she was in her bedroom when she heard downstairs from her room "get on the floor."

20. At this time, Ms. Smith was accompanied by a Mr. Derrick Williams.

21. After Plaintiff heard "get on the floor," she then heard the officers on the upstairs floor where her bedroom is situated.

22. Approximately 8-9 officers broke into Plaintiff's home on the morning of the subject matter.

23. At the time of the break in, Plaintiff was not shown a warrant.

24. Upon information and belief, Defendants did not possess a search warrant for Plaintiff's home.

25. Upon information and belief, Defendants without a valid search warrant for Plaintiff's home, forcible entered and searched it.

26. After the officers barged into her bedroom, Mr. Williams was placed in handcuffs as well as Plaintiff. They were both taken outside the home with their hands handcuffed behind their backs.

27. When Plaintiff was taken out of her bed and handcuffed, she was only wearing a see-through t-shirt and leggings with no undergarments.

28. After being escorted out of her room and handcuffed, Derrick Williams asked the police what they were doing with Plaintiff. The police officer told Mr. Williams that if Plaintiff told them where the guns were, she would not be arrested.

29. Plaintiff was not aware of anything the police were looking for.

30. Plaintiff was taken outside and placed into a police van. Before she was placed in the van, she was searched and pat down by a female officer.

31. At this time, Plaintiff made complaints to the officers that her handcuffs were too tight. She was told that they could not be loosened.

32. Plaintiff then asked the officers if she can get some undergarments to put on under her clothes. She was told that she could not go back into the home and that the officer could not

go back into the house for anything.

33. While Plaintiff was in the police van, her home was searched without a valid search warrant.

34. After Plaintiff was put in the police van, Mr. Williams was also placed in the van

35. After Plaintiff and Mr. Williams were in police custody, additional people were then picked up and placed in the same van. A man and woman were placed in the back of the police van. The woman who was placed in the van asked one of the officers if she can get pants to put on since she was in her pajamas. The officer went back into her home and put pants on the woman despite the officers telling Plaintiff she was unable to get undergarments because no one was allowed back in the home once she was out.

36. After riding around wearing a see through t-shirt in a police van full of men for several hours, Plaintiff was transported to the 120nd precinct in Staten Island, New York.

37. At the precinct she was finger printed, photographed and put in a cell with other women for approximately three to four hours.

38. At the precinct, Plaintiff told one of the officers that she needed to take her daily thyroid medication. She was told that if she wanted to be taken to the hospital, it would delay her going to the Courthouse.

39. From the 120nd precinct, Plaintiff was transported to the Courthouse.

40. At the Courthouse, Plaintiff waited to see the judge.

41. Plaintiff was arraigned at approximately 3:00 p.m.

42. Plaintiff was charged with criminal possession of a controlled substance in the 3rd degree(2 counts), criminal possession of a controlled substance in the 5th degree (3 counts),

criminally using drug paraphernalia in the 2nd degree (1 count), and criminal possession of a controlled substance in the 7th degree (3 counts).

43. Plaintiff pled not guilty.

44. Bail was set at \$7,500.00. Plaintiff was unable to make bail and was then sent to Riker's Island.

45. At Riker's Island, Plaintiff was held in intake overnight.

46. The next day, August 23, 2018, Plaintiff was taken back to the Staten Island Criminal Court.

47. Plaintiff was told she was at the Court to testify at the grand jury.

48. While waiting to testify, Plaintiff was told she was being released on her own recognizance.

49. After Plaintiff was released, she had to appear in Court about three times.

50. On or about February 13, 2019, all charges against me were dismissed.

51. Defendants, its agents, servants and employees, did, without any justification or probable cause, and in bad faith, arrest the Plaintiff, took her into custody, transported him in a motor vehicle, and confined him against his will.

52. As a result of the unlawful imprisonment, Plaintiff was forced to miss two days of her thyroid medication resulting in hair loss and having to increase her dosage of the medication.

53. As a result of the unlawful imprisonment, Plaintiff experienced extreme embarrassment in her family and in her community.

54. The occurrence hereinabove alleged was due solely to the gross negligence and deliberate indifference of the CITY, its agents, servants and employees, without any fault or

want of care on the part of the Plaintiff contributing thereto.

55. As a result of such occurrence, the Plaintiff suffered confinement, loss of liberty, shock, embarrassment, fear and mental anguish, was falsely caused to be confined, and was otherwise injured and damaged.

**AS AND FOR A FIRST CAUSE OF ACTION
(42 U.S.C. § 1983)**

56. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

57. Defendants by their conduct toward Plaintiff alleged herein, violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States.

58. Defendants, by their conduct toward Plaintiff alleged herein, violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States.

59. The conduct and actions of Defendants acting under color of law and under their authority as officers was done intentionally, maliciously, with a deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific serious bodily harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. § 1983 and the Fourth, Eighth and Fourteenth Amendments to the United States Constitution.

60. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein before alleged.

**AS AND FOR A SECOND CAUSE OF ACTION
(False Arrest)**

61 Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

62 Defendants violated the Fourth and Fourteenth Amendments because they arrested Plaintiff without probable cause.

63 As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

**AS AND FOR A THIRD CAUSE OF ACTION
(Monell Claim)**

64. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

65. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

66. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

67. The aforementioned customs, policies, usages, practices, procedures, and rules of the NYPD included, but were not limited to, police officers: failing to report misconduct of other officers; unlawfully searching individuals and arresting individuals.

68. In addition, Defendant CITY engaged in a policy, custom, or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of Plaintiff's rights as described herein. As a result of the failure of Defendant CITY to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, Defendant CITY has tacitly authorized, ratified, and has been

deliberately indifferent to, the acts and conduct complained of herein.

69. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.

70. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

71. The foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

72. As a result of the foregoing customs, policies, usages, practices, procedures, and rules of Defendant CITY and NYPD, Plaintiff was subjected to an illegal search and unlawfully arrested.

73. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights.

74. All of the foregoing acts by defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right to be free from false arrest/unlawful imprisonment and the right to be free from unreasonable search and seizure.

75. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

**AS AND FOR A FOURTH CAUSE OF ACTION
(Negligence)**

76. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

77. Defendants owed Plaintiff a duty of care to prevent them from being false arrested, maliciously prosecuted, illegally searched and assaulted.

78. Defendants breached that duty of care.

79. Defendants' breach of duty was the but-for cause of Plaintiff's injuries.

80. Defendants' breach of duty was the proximate cause of Plaintiff's injuries.

81. Plaintiff sustained damages, including but not limited to serious physical injuries, emotional injuries and pain and suffering as a result.

**AS AND FOR A FIFTH CAUSE OF ACTION
(Negligent Hiring, Training and Supervision Against Defendant City)**

82. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

83. The above-described injuries suffered by the Plaintiff are the proximate result of the negligence of the Defendant CITY in that Defendant CITY failed to exercise reasonable care in the hiring, employment, supervision, and training of its employees in NYPD.

84. Defendant CITY failed to properly train Defendants as to the appropriate investigative techniques required to assess criminal liability regarding GLA's.

85. Defendant CITY failed to exercise reasonable care by retaining and not terminating the employment of individual Defendants, or taking other appropriate corrective action. The occurrences complained of herein were due to the negligence and recklessness of the Defendant CITY.

86. By reason of the tortuous conduct of Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A SIXTH CAUSE OF ACTION
(New York Constitution Art. I, § 11)**

87. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

88. By the aforesaid acts, defendants have violated Plaintiff's right to the equal protection of laws under Article I, § 11 of the New York State Constitution, thereby giving rise to a cause of action pursuant to that Article.

89. The conduct and actions of the individual Defendants and Defendant CITY, acting under color of law, in falsely arresting, detaining, and prosecuting Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under laws and Constitution of the State of New York. The above-described actions and omissions engaged in under color of state law by the defendants, including defendant NYC, sued as a person within the meaning of Article I, § 11, deprived the Plaintiff of rights, including but not limited to, rights under Article I, § 8, 9, guaranteeing freedom of expression and association, Article I, § 12, guaranteeing protection against unlawful seizure of the person, Article I, § 11 guaranteeing due process and equal protection under the law, and Article I, § 5 guaranteeing protection from cruel and unusual punishment.

90. By reason of the Constitutional violations by Defendants, Plaintiff has been

damaged as set forth above.

**AS AND FOR A SEVENTH CAUSE OF ACTION
(Malicious Prosecution)**

91. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

92. By virtue of the aforesaid acts, defendants, their agents, servants, employees and/or representatives, maliciously, and unjustifiably prosecuted Plaintiff through the use of knowing and intentional perjurious information, documents and testimony.

93. The prosecution of Plaintiff by Defendants was malicious and without just or probable cause or reason.

94. The Defendants knowing that said charges were false and/or lacked probable cause, continued to prosecute the Plaintiff by acts including, but not limited to, charging Plaintiff with Falsely Reporting an Incident rather than accept a negative CompStat GLA statistic.

95. The charges resulted in a declined prosecution, but only after Plaintiff spent a significant amount of time in custody.

96. As a result thereof, the Plaintiff was charged with false accusations and was the victim of malicious prosecution by the Defendants, their agents, servants, employees and/or representatives, and suffered the injuries set forth above.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

- (a) Compensatory damages against all Defendants, jointly and severally;
- (b) Punitive damages against the individual Defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs; and

(d) Such other and further relief as this Court deems just and proper.

Dated: Staten Island, New York
May 21, 2020



Robert E. Brown, Esq.
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Attorneys for Plaintiff
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Staten Island, New York 10314
(718) 979-9779

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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KISHIA SMITH,

Plaintiff,

Index #:

-against-

THE CITY OF NEW YORK, DETECTIVE
FRANK J. RECCA and JOHN DOES NO.
1-10,

Defendants.
-----X

SUMMONS AND VERIFIED COMPLAINT

THE LAW OFFICE OF ROBERT E. BROWN, P.C.
Attorney for Plaintiff
260 Christopher Lane, Suite 201
Staten Island, NY 10314
(718) 979-9779

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that to the best of my knowledge, information and belief, formed after an inquiry reasonable under the circumstances, the presentation of this document or the contentions contained therein are not frivolous.

Dated: May 21, 2020

Signature: 
Signer's name: Robert E. Brown